

25CV04113 Andrea Marcus vs Carpinteria Unified School District

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-21

Motion: CMC; Demurrer; Motion: Compel re FURTHER RESPONSES TO INTERROGATORIES, SET ONE, AND REQUESTS FOR AD-MISSION, SET ONE

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Tentative Ruling: Andrea Marcus vs Carpinteria Unified School District

Case Number

25CV04113

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/21/2026 - 10:00

Nature of Proceedings

CMC; Demurrer; Motion: Compel re FURTHER RESPONSES TO INTERROGATORIES, SET ONE, AND REQUESTS FOR AD-MISSION, SET ONE

Tentative Ruling

Andréa Marcus v. Carpinteria Unified School District

Case No. 25CV04113

Hearing Date: September 21, 2026

HEARING: (1) Demurrer of Respondent Carpinteria Unified School District to Second Amended Petition

(2) Motion of Petitioner Andréa Marcus to Compel Further Responses to Interrogatories, Set One, and Requests for Admission, Set One

ATTORNEYS: For Petitioner Andréa Marcus: Self-Represented

For Respondent Carpinteria Unified School District: Melissa Hatch, Hatch & Cesario

TENTATIVE RULING:

(1) The demurrer of respondent Carpinteria Unified School District to second amended petition is overruled. On or before October 9, 2026, respondent shall file an answer to the second amended petition.

(2) The motion of petitioner Andréa Marcus to compel further responses to interrogatories, set one, and requests for admission, set one, is granted in part. On or before October 9, 2026, respondent Carpinteria Unified School District shall serve verified supplemental responses to special interrogatory numbers 1, 2, 5, and 7 as modified herein. The motion is denied in all other respects. The court declines to award monetary sanctions.

Background:

On July 2, 2025, petitioner Daria Lucero-Ahedo, filed a petition for writ of mandate to enforce the California Public Records Act (CPRA) under Government Code section 7920.000, et seq., pertaining to certain records of respondent Carpinteria Unified School District (CUSD). As alleged in the petition, Lucero-Ahedo is the mother of a 13-year-old Hispanic child with attention deficit hyperactivity disorder and learning disability enrolled at Carpinteria Middle School within CUSD. (Pet., ¶ 2.) The records at issue pertain to transporting or placement of CUSD students at Casa Pacifica, an apparent third party that provides services to special needs students attending CUSD. (See Pet., ¶¶ 6-12; see also Marcus Decl. ISO Mtn. to Quash, Feb. 9, 2026, ¶¶ 4-8.)

On August 5, 2025, a first amended petition (FAP) was filed. The FAP asserts the same basic facts as the original petition, but the named petitioner was changed from Lucero-Ahedo to Andréa Marcus (Marcus). Marcus is the attorney for Lucero-Ahedo as to the original petition. (See Pet.) Marcus indicates in a filing unrelated to this hearing that this change was made in response to CUSD's argument that Lucero-Ahedo had not personally requested the records. (See Marcus Decl. ISO Mtn. to Quash, Feb. 9, 2026, ¶ 16.)

On November 19, 2025, the court granted Marcus' unopposed motion to reflect Marcus as the petitioner in this action.

On April 20, 2026, Marcus filed a second amended petition (SAP). The SAP asserts one cause of action for writ of mandate pursuant to the CPRA.

As alleged in the operative SAP:

On May 16, 2025, Marcus transmitted a CPRA request by email to the CUSD superintendent, assistant superintendent, and school board members. (FAP, ¶ 6, Ex. A.) The request seeks "an electronic copy of all documentation regarding transporting and/or placement of students of Carpinteria Unified School District at Casa Pacifica during the 2023-2024 and 2024-2025 school years." (Ibid.) "This is to include but not be limited to memorandums of understanding, IEP documents

(with personally-identifying information redacted), invoices and contracts." (SAP, ¶ 6 & Ex. A.)

Marcus did not receive a response until June 2, 2025, when CUSD's counsel informed Marcus that the requested records would not be produced because they: (1) consist of medical, health, and other student records protected by state and federal privacy laws; (2) are protected by the official information privilege; (3) are protected by state or federal statutory privileges; (4) could not be disclosed because disclosure would be against public interest; (5) pertain to pending litigation or claims made pursuant to the California Tort Claims Act; or (6) relate solely to special needs minors. (SAP, ¶¶ 8-9 & Ex. B.)

The June 2 letter states that CUSD could provide aggregate data regarding: (1) the number of students placed at Casa Pacifica; (2) the number of students transported by CUSD to or from Casa Pacifica; (3) and the amount paid to Casa Pacifica during relevant school years. (SAP, ¶ 10 & Ex. B.)

On June 3, 2025, Marcus asked CUSD to provide the data it could provide and asked whether CUSD has any other records responsive to the CPRA request. (SAP, ¶ 11 & Ex. C.)

On June 13, 2025, CUSD produced limited aggregate data but failed to state whether it has other records responsive to the CPRA request. (SAP, ¶ 12.)

The SAP requests that the court issue a writ of mandate directing CUSD to produce all non-exempt, reasonably segregable public records responsive to the May 16, 2025, CPRA request, or to justify any withholding with particularized statutory

exemptions. (SAP, p. 7, ll. 3-8.) Petitioner asks that the court award reasonable attorney fees. (SAP, p. 7, ll. 9-10.)

On May 20, 2026, CUSD filed a demurrer to the SAP on the grounds that the records Marcus seeks are not public records, are records related to minor children who are disabled, and are protected from disclosure. Marcus opposes the demurrer.

On June 26, 2026, Marcus filed a motion to compel further responses to special interrogatory numbers 1 through 7 and to requests for admission numbers 3, 5, 7, 8, 9, 10, 17, 18, 19, and 20. Marcus also requests an award of monetary sanctions. CUSD opposes the motion to compel.

Analysis:

(1) Demurrer

" 'The rules by which the sufficiency of a complaint is tested against a general demurrer are well settled. We not only treat the demurrer as admitting all material facts properly pleaded, but also 'give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.' " (Zhang v. Superior Court (2013) 57 Cal.4th 364, 370, internal quotation marks and citations omitted.) "Because the function of a demurrer is to test the sufficiency of a pleading as a matter of law, we ... assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law. [Citation.] It is error for the trial court to sustain a demurrer if the plaintiff has stated a cause of action under any possible legal theory, and it is an abuse of discretion for the court to sustain a demurrer without leave to amend if the plaintiff has shown there is a reasonable possibility a defect can be cured by amendment." (California Logistics, Inc. v. State of California (2008) 161 Cal.App.4th 242, 247.) "[I]n ruling on a demurrer the trial court may take into account in addition to the complaint itself any matter that may be properly considered under the doctrine of judicial notice." (Cruz v. County of Los Angeles (1985) 173 Cal.App.3d 1131, 1133-1134.)

" 'A respondent may test the legal sufficiency of a petition for writ of mandate by demurrer.' [Citation.] The rules governing demurrers to civil complaints also apply to mandamus actions." (Water Audit California v. Merced Irrigation Dist. (2025) 111 Cal.App.5th 1147, 1180.) "Mandamus will lie to compel a public official to perform an official act required by law. [Citation.]

Mandamus will not lie to control an exercise of discretion, i.e., to compel an official to exercise discretion in a particular manner. Mandamus may issue, however, to compel an official both to exercise his discretion (if he is required by law to do so) and to exercise it under a proper interpretation of the applicable law." (Id. at 1181.) "Where a statute or ordinance clearly defines the specific duties or course of conduct that a governing body must take, that course of conduct becomes mandatory and eliminates any element of discretion." (Ibid.) "A trial court must determine whether the agency had a ministerial duty capable of direct enforcement or a quasi-legislative duty entitled to a considerable degree of deference." (Ibid.) "In order to construe a statute as imposing a mandatory duty, the mandatory nature of the duty must be phrased in explicit and forceful language." (Ibid.)

"Any person may institute a proceeding for injunctive or declarative relief, or for a writ of mandate, in any court of competent jurisdiction, to enforce that person's right under [the CPRA] to inspect or receive a copy of any public record or class of public records." (Gov. Code, § 7923.000.) " '[P]ublic records' includes any writing containing information relating to the conduct of the public's business prepared, owned, used, or retained by any state or local agency regardless of physical form or characteristics." (Gov. Code, § 7920.530.) "To establish an agency has a duty to disclose under [the CPRA], the petitioner must show that: (1) the record 'qualif[ies] as [a] public record[]' [under the statute] and (2) the record is 'in the possession of the agency.' " (Anderson-Barker v. Superior Court (2019) 31 Cal.App.5th 528, 538, internal quotation marks omitted.) "The duty to disclose applies only when the petitioner has satisfied both elements." (Id. at p. 539.)

"Whenever it is made to appear, by verified petition to the superior court ... that certain public records are being improperly withheld from a member of the public, the court shall order the officer or other person charged with withholding the records to disclose those records or show cause why that person should not do so." (Gov. Code, § 7923.100.) "An agency shall justify withholding any record by demonstrating that the record in question is exempt under express provisions of this division, or that on the facts of the particular case the public interest served by not disclosing the record clearly outweighs the public interest served by disclosure of the record." (Gov. Code, § 7922.000.)

"[The CPRA] does not confer an absolute right of access. As part of the CPRA, the Legislature included a provision declaring it was 'mindful of the right of individuals to privacy.' [Citation.] This express policy declaration 'bespeaks legislative concern for individual privacy as well as disclosure.' [Citations.] To balance those competing goals of privacy and public access, the CPRA includes numerous exemptions that permit public agencies to refuse disclosure of certain public records. For example, section 7927.700 exempts from disclosure any 'personnel, medical, or similar files, the disclosure of which would constitute an unwarranted invasion of personal privacy.' Additionally, a catchall exemption permits a public agency to withhold records if it can demonstrate 'on the facts of the particular case the public interest served by not disclosing the record clearly outweighs the public interest served by disclosure of the record.' [Citation.]" (Iloh v. Regents of University of California (2023) 87 Cal.App.5th 513, 523–524 (Iloh).) "In determining whether the [catchall] exemption applies, we weigh the public's interest in disclosure against protection of privacy interests, determining first whether disclosure would compromise substantial (as opposed to de minimis) privacy interests, and then deciding whether the potential harm to those privacy interests outweighs the public interest in disclosure." (Id. at p. 528.)

"[U]nless an exemption applies, the CPRA requires disclosure of any 'public record,' which the [CPRA] defines as 'any writing containing information relating to the conduct of the public's business prepared, owned, used, or retained by any state or local agency.'" (Iloh, supra, 87 Cal.App.5th at p. 524.) "The controlling question, therefore, is whether the requested documents 'contain[] information relating to the conduct of the public's business' within the meaning of the CPRA." (Id. at pp. 524–525.) "Our Constitution requires that these provisions furthering the people's right of access to information be 'broadly construed.' " (Iloh, supra, 87 Cal.App.5th at p. 523.)

"The court shall decide the case after the court does all of the following: [¶] (a) Examine the record in camera, if permitted by subdivision (b) of Section 915 of the Evidence Code. [¶] (b) Examine any papers filed by the parties. [¶] (c) Consider any oral argument and additional evidence as the court may allow." (Gov. Code, § 7923.105.)

Here, the SAP alleges that Marcus transmitted a CPRA request pertaining to CUSD's educational operations and that responsive records have not been produced. (SAP, ¶¶ 6-10.) Although the CPRA request does appear to include private information that is likely exempted from CPRA disclosure, in whole or in part, it appears that at least some of these records are likely subject to disclosure under the CPRA. (SAP, ¶ 6 & Ex. A; Gov. Code, § 7923.100.) For example, categories such as memorandums of understanding, invoices, and contracts appear less likely to be exempted based on privacy, whereas

individualized education plans for particular special needs students appear more likely to be exempted. (See Gov. Code, §§ 7922.000, 7927.700, 7927.705.)

The parties' dispute centers on what is private and exempt from CPRA requirements, and what records or data are properly responsive to the CPRA request. These are not disputes that can be resolved on demurrer at the pleading stage. (See Gov. Code, § 7922.000.) The scope of what production, if any, is required can be resolved through briefing, a hearing on the petition, in camera review if necessary, and the other procedures under the CPRA. (See Gov. Code, § 7923.105.) For all these reasons, the court will overrule the demurer.

(2) Motion to Compel

"[T]he CPRA is intended to 'permit the expeditious determination' of a narrow issue: whether a public agency has an obligation to disclose the records that the petitioner has requested." (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 289 (City of Los Angeles).) An action under the CPRA is a special civil proceeding subject to the Civil Discovery Act. (Ibid.)

Discovery methods including interrogatories and requests for admission must seek information that is reasonably calculated to lead to the discovery of admissible evidence and that relates to a claim or defense in the action. (Code Civ. Proc., § 2017.010.) However, "[w]hen a party does seek to compel discovery [in a CPRA action], the trial court must determine whether the discovery sought is necessary to resolve whether the agency has a duty to disclose, and to additionally consider whether the request is justified given the need for an expeditious resolution." (City of Los Angeles, 9 Cal.App.5th at p. 289.)

The court notes that Marcus combined two discovery motions (one for requests for admission and one for special interrogatories) into a single motion. This is improper. (See Gov. Code, § 70617, subd. (f).) Moreover, neither of these discovery motions is supported by a separate statement. (See Cal. Rules of Court, rule 3.1345(a).) In addition, neither of the motions is supported by a compliant meet and confer declaration. "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040.) The declaration by Marcus does not indicate that a meet and confer conference occurred by phone, videoconference, or in person as to each issue presented in the motion. (See Marcus Decl. ISO Mtn. to Compel [Marcus Decl.], Ex. F.)

Despite these procedural deficiencies, to promote an expeditious resolution of this CPRA dispute the court has reviewed the discovery served by Marcus and evaluated the parties' arguments. The court will grant the motion, in part, and modify the discovery as follows:

Special Interrogatory No. 1 [modified]: Identify the categories of records in Respondent's possession, custody, or control that are responsive to Petitioner's May 16, 2025, CPRA request.

Special Interrogatory No. 2 [modified]: Provide justification why any categories of records requested by Petitioner's May 16, 2025, CPRA request are exempt from disclosure.

Special Interrogatory No. 5 [modified]: Explain whether or not any categories of records requested by Petitioner's May 16, 2025, CPRA request can be produced after redacting personally identifying student information and segregating non-exempt portions of responsive records.

Special Interrogatory No. 7 [modified]: List the names and titles of any person responsible for determining what documents are provided by Respondent in response to Petitioner's May 16, 2025, CPRA request.

The court finds this information is helpful in resolving the narrow issues of what documents are responsive to the CPRA request or are exempt from disclosure. (City of Los Angeles, *supra*, 9 Cal.App.5th at p. 290 [“T]he trial court has discretion to consider whether the petitioner has made an adequate showing that the discovery is likely to aid in the resolution of the particular issues presented in the proceeding.”].) The motion is denied as to special interrogatory numbers 3 (refers to another interrogatory and is ambiguous), 4 (duplicative of number 2), and 6 (duplicative of number 5). (See Marcus Decl., Ex. C.)

As drafted, the court does not find that further responses to requests for admission numbers 3, 5, 7, 8, 9, 10, 17, 18, 19, and 20 are helpful to the resolution of issues before the court. The court will therefore deny the motion as to these requests. (City of Los Angeles, *supra*, 9 Cal.App.5th at p. 289 [“T]he trial court must determine whether the discovery sought is necessary to resolve whether the agency has a duty to disclose, and to additionally consider whether the request is justified given the need for an expeditious resolution.”].)

Request numbers 3 and 9 ask CUSD to admit what Marcus personally received and when, which does not appear to be within the knowledge of CUSD. (Marcus Decl., Ex. E.) Request number 5 is compound and ambiguous. (*Ibid.*) Request number 7 refers to another request for admission and is ambiguous. (*Ibid.*) Request number 10 is based on the premise that Marcus has authority on what is “authorized” to be redacted under the CPRA, which appears improper. (*Ibid.*) CUSD responded to request numbers 8 and 18 through 20, and the court does not find that further responses would be helpful in resolving the narrow issues before the court. (*Ibid.*; see City of Los Angeles, *supra*, 9 Cal.App.5th at pp. 289-290.) Request number 17 is ambiguous as phrased.

The court declines to award monetary sanctions.

Judges

Judge Colleen Sterne

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